

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2026CUPP064361: ADELA MAGANA DE MAGANA, et al. vs GNS DEVELOPMENT,
INC., A CALIFORNIA CORPORATION, et al.**

09/16/2026 in Department 20

Motion to Strike Punitive Damages

The morning calendar in courtroom 20 will normally begin at 8:30 a.m. Please arrive for your hearing no later than 8:20 a.m. The door will be opened before the calendar is called.

For Zoom appearances, all counsel appearing by Zoom must follow the instructions and procedures for Courtroom 20 on the Ventura Superior Court website. IF YOU DO NOT DO SO, YOU WILL NOT BE PERMITTED TO APPEAR BY ZOOM AT THE HEARING.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling, you may email Courtroom20@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending an email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. **If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.**

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d), and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Motion to Strike Punitive Damages by Defendants GNS Development, Inc., a California Corporation doing business as Golf N' Stuff ("GNS"); George Henry Brimhall II ("Brimhall"); and Richard Arthur Anderson ("Anderson")(collectively "Defendants")

Tentative: Defendants' Motion to Strike Punitive Damages is DENIED. Defendants shall file and serve their Answer to the Complaint on or before 9/28/26.

Punitive damages cannot be awarded against a corporation unless (1) it had knowledge of the unfitness of an employee who committed the improper act and employed the individual with a conscious disregard for the rights or safety of others; (2) it knew of and authorized or later ratified the wrongful conduct of an officer, director, or managing agent of the corporation for which damages are awarded; or (3) directly committed acts of oppression, fraud, or malice. (Civ. Code § 3294, subd. (b); *White v. Ultramar, Inc.*(1999) 21 Cal.4th 563, 569, 573 ("*White*") ["[C]orporate punitive damage liability [is limited] to those employees who exercise substantial independent authority and judgment over decisions that ultimately determine corporate policy"; (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721, 725; *Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1153.)

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“[C]orporate policy” is the general principles which guide a corporation, or rules intended to be followed consistently over time in corporate operations. A “managing agent” is one with substantial authority over decisions that set these general principles and rules. (*Cruz v. HomeBase* (2000) 83 Cal.App.4th 160, 167-168.) In order to demonstrate that an employee is a true managing agent under section 3294, subdivision (b), a plaintiff seeking punitive damages would have to show that the employee exercised substantial discretionary authority over significant aspects of a corporation's business. (*White, supra*, 21 Cal. 4th at 576-77.) Ratification can occur when the employer accepts or approves an employee's oppressive, fraudulent, or malicious behavior that took place while performing the duties of their job. (See *College Hosp., Inc. v. Superior Court* (1994) 8 Cal.4th 704, 726.)

At the pleading stage, Plaintiffs have alleged specific facts which if found true could cause a reasonable jury to award punitive damages against each Defendant. Plaintiffs allege GNS' ownership and control over the property; that Brimhall was GNS' CEO who exercised complete dominion and control over GNS; and that Anderson was the CFO who exercised complete dominion and control over the financial operations of GNS. This dominion and control by both Brimhall and Anderson allegedly included decisions concerning property maintenance, vegetation management and budget allocations for property upkeep; responses to code enforcement violations; and all financial transactions. Both individuals allegedly participated in, authorized, directed, and/or ratified the negligent acts and omissions set forth below. (Compl. ¶¶ 10-13, 17.) Plaintiffs further allege facts that could support a finding that the corporate form should be disregarded. (Compl. ¶¶ 16-19.)

In sum, Plaintiffs allege GNS' historic knowledge of multiple safety concerns at the property, which Defendants deliberately failed to address or correct. Specifically, a 2013 fatality occurred on the property caused by a crown of a palm falling, and a subsequent federal safety investigation allegedly established GNS' palm trees were prone to catastrophic breakage, requiring specialized professional attention. Defendants were allegedly on notice of continuing dangerous conditions on the property based on three health and safety citations issued by the City of Ventura to GNS between 2022 and 2024 related to fire and health hazards caused by excess vegetation, trash, and debris. Despite this notice Defendants purportedly consciously chose to not implement any adequate vegetation management program and with willful and conscious disregard, failed to protect patrons from a foreseeable risk of tree collapse. (Compl. ¶¶ 25-29, 52.) (See generally, *Hoch v. Allied-Signal, Inc.* (1994) 24 Cal.App.4th 48, 61; citing *Taylor v. Superior Court* (1979) 24 Cal.3d 890 (*Taylor*), 895-896; *Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 329.) Such conduct could be reasonably seen as contemptible and base, thereby rising to the level of despicable conduct. (See generally, *Scott v. Phoenix School, Inc.* (2009) 175 Cal.App.4th 702, 716 (*Food Pro International, Inc. v. Farmers Ins. Exchange* (2008) 169 Cal.App.4th 976, 994-995.)

At the pleading stage, the allegations are sufficient to state a claim for punitive damages and the Motion to Strike is therefore DENIED. Defendants shall file and serve their Answer to the Complaint on or before 9/28/26.

Plaintiffs shall give notice.